



CHAPTER 49.

An Act to continue in force the Local Elections and Register of Electors (Temporary Provisions) Act, 1939, as amended by the Local Elections and Register of Electors (Temporary Provisions) Act, 1940, and to make certain amendments of those Acts, including amendments modifying the qualifications of common councilmen of the City of London and the persons entitled to vote at elections of aldermen and common councilmen in the said City and postponing the preparation of ward lists in the said City.

[11th November 1941.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The Local Elections and Register of Electors (Temporary Provisions) Act, 1939, as amended by the Local Elections and Register of Electors (Temporary Provisions) Act, 1940, shall have effect subject to the amendments set out in the Schedule to this Act, and, as so amended, shall continue in force until the thirty-first day of December, nineteen hundred and forty-two, and no longer, unless Parliament otherwise determines.
2. This Act may be cited as the Local Elections and Register of Electors (Temporary Provisions) Act, 1941.

Continuance
with amend-
ment of 2 & 3
Geo. 6. c. 115.
4 & 5 Geo. 6.
c. 3.

Short title.

SCHEDULE.

Such of the provisions of the Local Elections and Register of Electors (Temporary Provisions) Act, 1939, as amended by the Local Elections and Register of Electors (Temporary Provisions) Act, 1940, as are specified in the first column of this Schedule shall have effect subject to the amendments specified in the second column of this Schedule.

Section four - - At the end of the section there shall be inserted the following subsections:—

“(2) Notwithstanding anything in section one of this Act, section five of the local Act 12 & 13 Vict. cap. xciv, in so far as it requires, as a qualification for election as a common councilman for any ward in the City of London, the occupation of premises in the said ward rated at the amount specified in the said section, shall not apply to any election taking place while this Act is in force or before the fifteenth day of October next following the expiry of this Act.

(3) Section two of the City of London Municipal Elections Amendment Act, 1867, in so far as it requires, as a qualification for voting at an election for an alderman or common councilman for any ward in the City of London, the occupation of premises in the said ward rated at the amount specified in the said section, shall not apply to any such election taking place while this Act is in force or before the third day of December next following the expiry of this Act.

(4) The lists of persons in the several wards of the City of London who are entitled to vote under the City of London Municipal Elections Amendment Act, 1867, being the lists made out and signed on the third day of December, nineteen hundred and forty, in accordance with section five of the said Act, shall remain in force until the third day of December next following the expiry of this Act; and no further lists shall be made out under the said section five while this Act is in force.”

Section eight - - After paragraph (b) of the section there shall be inserted the following paragraphs—

“ (ba) where a councillor who has been continued in, or elected to, office by or in pursuance of this Act, has thereafter been elected to the office of bailie or appointed to the office of judge of police, nothing in section one of this Act shall operate to continue that councillor in that office beyond the date on which he ceases to be a councillor or the expiry of three years from the first Tuesday of November immediately preceding his election or appointment to that office, or, in the case of a person so elected or appointed after the first Tuesday of November, nineteen hundred and forty-one, beyond such earlier date as may be fixed by the council at the time of his election or appointment to that office, whichever may be the earliest :

Provided that—

- (i) this paragraph shall be without prejudice to the re-election of any such councillor to either of the said offices ;
 - (ii) nothing in this paragraph shall affect the provisions of any local Act by virtue of which a councillor who is elected a bailie or appointed a judge of police ceases to hold office at an earlier date than that herein provided ;
- (bb) notwithstanding anything in section one of this Act, every county councillor representing a burgh shall cease to hold office as a county councillor on the first Tuesday of December, nineteen hundred and forty-one, and the town council of the burgh shall elect from among their own number persons (who may be the retiring councillors) to hold office as county councillors as from the said date.”